A. Production Notice

If requested by the creditor, you are required to produce copies of all books & records about the income or property of the judgment debtor, including, but not limited to, the following documents:

5. Citation Notice to Debtor

The debtor has the **right to claim certain protections ("exemptions")**. If the debtor claims an exemption, the income or property covered by that exemption cannot be taken to pay the judgment.

To Debtor:

- **Automatic protections**: If you have $1,000 or less in a bank account, that amount will be automatically exempt and available through the return date listed in Section 3.
- **Right to protect other funds**: You have the right to protect money in bank account up to $4,000 by using the "wildcard" exemption.
- **Right to unfreeze funds for emergencies:** If you need the money frozen in your bank account for emergencies or necessities, you can file the *Emergency Motion to Claim Exemption* form.

Here are some exemptions the debtor may be able to claim:

A. Money or belongings up to $4,000 ("wildcard exemption"), of which $1,000 will be automatically applied to the debtor's bank, savings bank, or credit union account through the end of the hearing above in Section 3.

B. Social Security, Supplemental Security Income benefits, and disability.

C. Public assistance benefits.

D. Child support.

E. Unemployment compensation benefits.

F. Workers' compensation benefits.

G. Veteran's benefits.

H. Circuit breaker property tax relief benefits.

I. Debtor's equity interest, up to $3600, in any one motor vehicle.

J. Debtor's equity interest, up to $2250, in any professional books, or tools of their trade.

K. Pension and retirement benefits and refunds.

L. Debtor's equity interest, up to $50,000 for an individual and $100,000 for two or more individual owners, in the house they live in.
Equity interest is the money the debtor would get if they sold their property and paid off any outstanding loans.

M. Personal property including: food, eating and cooking utensils, bedding, furniture, books, refrigerator, stove, microwave oven, kitchen appliances, necessary provisions, washing machine, clothes dryer, vacuum cleaner, yard equipment and household equipment and tools.

N. Personal possessions including: clothing, pets, personal health aids, medications, computers or similar electronic devices and telephones.

O. One piece of jewelry up to a value of $5,000.

P. Personal bodily injury awards up to $22,500.

The debtor has the right at the court date listed in section **3** to declare property or income as exempt. The debtor also has the right to ask for these exemptions at an earlier date by notifying the clerk in writing at the office of the Circuit Clerk. A court date will be promptly set. Necessary forms must be prepared by the debtor and sent to the bank and the creditor or the creditor's attorney.

6. Certification by the Creditor

A. *Enter the name of the debtor and the date of the judgment. If the judgment has been renewed ("revived"), enter that date.*

A judgment was entered or renewed against _____,
Name

the debtor, on _____.
Date

B. The amount of the judgment is $ _____.
Amount of Judgment

C. *Enter how much is still owed to you. You are entitled to the judgment amount, court costs (e.g., filing fees, service fees, sheriff's fee, etc.), and post judgment interest of 9% per year. Subtract any payments made by the debtor.*

The **current balance due**, including judgment interest and the creditor's court costs, minus any payments made by the debtor or on behalf of the debtor after the judgment was entered is $

Check one of the boxes below depending on the judgment:

☐ This is a consumer debt judgment with 5% per year post judgment interest.

☐ This is **not** a consumer debt judgment with 9% per year post judgment interest.

7. *You must mail this Citation by first-class regular mail to the debtor.*
I certify I will mail by regular first-class mail a copy of the *Citation* to the debtor at the address shown above within 3 business days after service on the bank's authorized agent.

Case Number _____

SIGN

Under 735 ILCS 5/1-109, my signature means that:

1) Everything in this document is true and correct, or I have been informed or I believe it to be true and correct, and

2) I understand that making a false statement on this form is perjury and has penalties provided by law.

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature /s/_____ Print Name _____

☐ **I am completing this form for myself**

Phone Number _____ Email (if you have one) _____

Address _____

Street, Apt. # *City* *State* *Zip Code*

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

☐ **I am a lawyer completing this form on behalf of a client** (Client name): _____

Lawyer Name _____ Attorney Number _____

Lawyer Phone Number _____ Law Firm _____

Lawyer Email _____

Address _____

Street, Apt. # *City* *State* *Zip Code*

The Circuit Clerk will fill in this section.

To be filled in by the Circuit Clerk:

Witness this Date: _____

Seal of Court

Clerk of the Court: _____

WHAT'S NEXT

NEXT STEP FOR PERSON FILLING OUT THIS FORM:

After you fill out your forms, file them with the Circuit Clerk's office in the county where your case is taking place. After the Circuit Clerk's office has stamped the court's seal to this form, then send your forms to the other people in the case. Find your Circuit Clerk: ilcourts.info/clerks.

Learn more about each step in the process and how to file in our Instructions:
ilcourts.info/how-to-bank-citation

THE NEXT FORM IS FOR THE BANK TO FILL OUT AND FILE.

ANSWER TO CITATION PROCEEDING

(TO BE FILLED OUT BY DEBTOR'S BANK)
IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: _____
County Where the Case Was Filed

Enter the case information as it appears on your other court documents.

PLAINTIFF:
Who started the case. *First, Middle, and Last Name, or Business Name*

DEFENDANT:
Who the case was filed against. *First, Middle, and Last Name*

RESPONDENT: _____
Bank. *Bank Name*

_____
Case Number

To Creditor:
- Fill out section **1**.
- Then, leave the rest of the form blank.

To Bank:
- Fill out sections **2**, **3**, **4**, and **5** and sign the form.
- Then, file this *Answer to Citation Proceeding* with the court and send a copy to the creditor.
- Contact the Circuit Clerk for instructions on how to file this *Answer* with the court.

1. Information about the Respondent and the Debtor:

A. Bank's name: _____

B. Bank's address: _____
Street, Apt. # *City* *State* *Zip*

C. Debtor's name: _____
First *Middle* *Last Name*

D. Debtor's social security number *(last 4 digits)*: _____

E. Judgment Amount: $_____

NOTICE TO BANK: This is a *Citation*. Do not freeze any non-exempt funds that are more than twice the balance due. See section **2** below.

2. Interrogatories:

A. On the date of service of the *Citation*, do you have any personal property or money belonging to the debtor?

☐ Yes

- or -

☐ No

STOP If you check the box next to "**no**", do **not** fill out the rest of the form. Sign on page 8.

B. Automatic Exemption Funds

This refers to the debtor's automatic $1,000 exemption right under 735 ILCS 5/12-1001.1, following entry of a consumer debt judgment. ***If there is any change in this amount****, you must immediately notify the court, the creditor, and the debtor to inform them how much has been used.*

How much of the $1000 automatic exemption of funds in the debtor's checking or savings deposit accounts has been used by the debtor?

$_____ as of _____
Date

C. Is any of the money deposited into an IRA?

☐ Yes. If yes, do **not** freeze the IRA accounts. ☐ No

D. Have all of the deposits made during the past 90 days been electronically deposited and identified as Social Security, Unemployment Compensation, Public Assistance, Veteran's Benefits, Pension, or Retirement?

☐ Yes. If yes, do **not** freeze the account. ☐ No

E. Is the account's current balance equal to or less than the total of the exempt deposits?

☐ Yes. If yes, do **not** freeze the account. ☐ No

If you checked **No** in **C**, **D**, and **E**, then freeze up to double the amount of the judgment.

3. Property:

A. ☐ Account

	Account Type	Account Balance	Amount Withheld
1.	_____	$_____	$_____
2.	_____	$_____	$_____
3.	_____	$_____	$_____
4.	_____	$_____	$_____
5.	_____	$_____	$_____
6.	_____	$_____	$_____

B. ☐ Safety Deposit ☐ Yes ☐ No

C. ☐ Other property *(rents, mortgages, etc.)*

	Describe Property	Value of Property	Amount Withheld
1.	_____	$_____	$_____
2.	_____	$_____	$_____

D. ☐ Less Right of Offset for Loans: $_____

E. Total Amount Frozen: $_____

4. List all electronic monthly deposits:

	Account Number	Source of Deposit	Monthly Amount
A.	_____	_____	$_____
B.	_____	_____	$_____
C.	_____	_____	$_____

5. List all joint account holders or anyone who has a claim on the property:

If all of the property belongs to another person who is not the debtor, do not freeze the property.

A. Name: _____
First *Middle* *Last Name*

Address: _____
Street, Apt. # *City* *State* *Zip Code*

Account Information: Type: ☐ Checking ☐ CD ☐ Savings

Account Number: _____

B. Name: _____
First *Middle* *Last Name*

Address: _____
Street, Apt. # *City* *State* *Zip Code*

Account Information: Type: ☐ Checking ☐ CD ☐ Savings

Account Number: _____

C. Name: _____
First *Middle* *Last Name*

Address: _____
Street, Apt. # *City* *State* *Zip Code*

Account Information: Type: ☐ Checking ☐ CD ☐ Savings

Account Number: _____

Mail or hand-deliver a copy of this completed Answer to the Circuit Clerk, plaintiff, and debtor.

SIGN

Under 735 ILCS 5/1-109, my signature means that:

1) Everything in this document is true and correct, or I have been informed or I believe it to be true and correct, and

2) I understand that making a false statement on this form is perjury and has penalties provided by law.

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature /s/_____ Print Name _____

Date _____

Job Title _____

Phone Number _____ Email _____

Address _____
Street, Apt. # *City* *State* *Zip Code*

Attorney Number _____ Law Firm _____